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CASE #	CASE NAME	HEARING NAME
CVME2400821	NAVARRO VS INLAND EYE SPECIALISTS,	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: Demurrer sustained to 2nd Cause of Action with 20 days leave to amend. Plaintiff indicates that the 3rd Cause of action will be dismissed.

Meet and Confer - Defendants have complied with the statutory obligation to meet and confer pursuant to CCP § 430.41. (See Declaration of Shirley Carpenter Bridwell, ¶4.)

Standard - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Demurrer to 3rd cause of action for premises liability - In the Opposition, Plaintiff states that he will dismiss without prejudice the claim for premises liability. (Opposition, page 3, line 19.)

Demurrer to 2nd cause of action for fraudulent concealment - The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

Here, Plaintiff lumps all defendants together in ¶¶ 16-18, without alleging anything specific. And, as noted by Defendants, the FAC fails to establish knowledge of falsity versus professional opinions regarding Plaintiff's injuries. Courts require proof that the statement was false when made and made with intent to defraud, not just that it was a subjective medical judgment. (See, *Wang v. FMC Corp.*, 975 F.2d 1412, 1421 (9th Cir. 1992) overruled on other grounds by *United States ex rel. Hartpence v. Kinetic*

Concepts, Inc., 792 F.3d 1121 (9th Cir. 2015) (en banc). Finally, there is no showing of intent to deceive on the part of defendants. Fraud is an intentional tort.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506577	QIN VS KOLL	MOTION TO DISMISS 1 ST AMENDED COMPLAINT

Tentative Ruling: Motion to Dismiss is Denied.

Plaintiffs Jin Jack Qin, Heavenstone Ranch Corp., and Temecula QK Holdings, LLC (collectively “Plaintiffs”) allege that on April 26, 2022, they agreed to sell certain real property located at 3445 Monte Verde Road in Temecula to Defendant AJK Investments LLC (“AJK”) for \$328,000, with title to transfer only upon payment of the full purchase price. However, Defendant Gregory S. Koll (“Koll”) caused the property to be transferred into the name of AJK by recording a deed, without any corresponding payment and then transferred the property from AJK to Defendant Stone Compass Group, LLC (“Stone Compass”), a now suspended entity under his control, in an effort to frustrate recovery and obfuscate ownership and secured a loan on the improperly, transferred property from Defendant ELS Holdings LLC (“ELS”), who later assigned the loan and security interest to Defendant Churchill Funding I LLC (“Churchill”). Koll is alleged to have acted while acting in a fiduciary capacity as an officer of Plaintiff Temecula QK Holdings. Plaintiffs allege the \$328,000 was never paid, leaving title clouded and Plaintiffs seeking to void the transfers, cancel the resulting deeds and lien, and quiet title.

On June 9, 2025, Plaintiffs filed this action. On October 8, 2025, Plaintiffs filed a First Amended Complaint (“FAC”) alleging eight (8) causes of action: 1) Declaratory Relief - Void Transfer; 2) Fraud (Intentional Misrepresentation); 3) Breach of Fiduciary Duty; 4) Breach of Contract; 5) Constructive Trust; 6) Cancellation of Instrument (Civ. Code § 3412); 7) Cancellation of Deed of Trust / Lien; and 8) Quiet Title.

On January 21, 2026, the parties stipulated, and the Court ordered that Plaintiffs shall be granted leave to file a Second Amended Complaint within 30 days.

Defendants Koll and Stone Compass (collectively “Defendants”) now move the Court for an entry of judgment of dismissal due to Plaintiffs failure to timely file the SAC pursuant to their stipulation and the Court’s order. (C.C.P., § 581(f)(2).)

On April 22, 2026, at the CMC, the Court and the parties conferred regarding the status of the amended complaint. The Court stated the case needed to be at issue by the next hearing on June 8, 2026.

On June 8, 2026, Plaintiffs filed their Second Amended Complaint (“SAC”).

Plaintiffs oppose the motion arguing the Court has exercised its discretion in permitting leave to amend, the SAC is now on file and dismissal is not required or appropriate. They state the late filing was due to counsel’s serious cardiac illness